

PROTOCOL TO THE TREATY BETWEEN THE UNITED STATES OF AMERICA AND THE UNION OF SOVIET SOCIALIST REPUBLICS ON THE LIMITATION OF ANTI-BALLISTIC MISSILE SYSTEMS

At the 1974 Summit meeting, the United States and the Soviet Union signed a protocol that further restrained deployment of strategic defensive armaments. The 1972 ABM Treaty had permitted each side two ABM deployment areas, one to defend its national capital and another to defend an ICBM field. The 1974 ABM Protocol limits each side to one site only.

The Soviet Union had chosen to maintain its ABM defense of Moscow, and the United States chose to maintain defense of its ICBM emplacements near Grand Forks, North Dakota. To allow some flexibility, the protocol allows each side to reverse its original choice of an ABM site. That is, the United States may dismantle or destroy its ABM system at Grand Forks and deploy an ABM defense of Washington. The Soviet Union, similarly, can decide to shift to an ABM defense of a missile field rather than of Moscow. Each side can make such a change only once. Advance notice must be given, and this may be done only during a year in which a review of the ABM Treaty is scheduled. The Treaty prescribes reviews every five years; the first year for such a review began October 3, 1977.

Upon entry into force, the protocol became an integral part of the 1972 ABM Treaty, of which the verification and other provisions continue to apply. Thus the deployments permitted are governed by the Treaty limitations on numbers and characteristics of interceptor missiles, launchers, and supporting radars. The system the United States chose to deploy (Grand Forks) has actually been on an inactive status since 1976.

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Signed at Moscow July 3, 1974
Ratification advised by U.S. Senate November 10, 1975
Ratified by U.S. President March 19, 1976
Instruments of ratification exchanged May 24, 1976
Proclaimed by U.S. President July 6, 1976
Entered into force May 24, 1976

The United States of America and the Union of Soviet Socialist Republics, hereinafter referred to as the Parties,

Proceeding from the Basic Principles of Relations between the United States of America and the Union of Soviet Socialist Republics signed on

May 29, 1972,

Desiring to further the objectives of the Treaty between the United States of America and the Union of Soviet Socialist Republics on the Limitation of Anti-Ballistic Missile Systems signed on May 26, 1972, hereinafter referred to as the Treaty,

Reaffirming their conviction that the adoption of further measures for the limitation of strategic arms would contribute to strengthening international peace and security,

Proceeding from the premise that further limitation of anti-ballistic missile systems will create more favorable conditions for the completion of work on a permanent agreement on more complete measures for the limitation of strategic offensive arms,

Have agreed as follows:

Article I

1. Each Party shall be limited at any one time to a single area of the two provided in Article III of the Treaty for deployment of anti-ballistic missile (ABM) systems or their components and accordingly shall not exercise its right to deploy an ABM system or its components in the second of the two ABM system deployment areas permitted by Article III of the Treaty, except as an exchange of one permitted area for the other in accordance with Article II of this Protocol.

2. Accordingly, except as permitted by Article II of this Protocol: the United States of America shall not deploy an ABM system or its components in the area centered on its capital, as permitted by Article III(a) of the Treaty, and the Soviet Union shall not deploy an ABM system or its components in the deployment area of intercontinental ballistic missile (ICBM) silo launchers as permitted by Article III(b) of the Treaty.

Article II

1. Each Party shall have the right to dismantle or destroy its ABM system and the components thereof in the area where they are presently deployed and to deploy an ABM system or its components in the alternative area permitted by Article III of the Treaty, provided that prior to initiation of construction, notification is given in accord with the procedure agreed to in the Standing Consultative Commission, during the year beginning October 3, 1977, and ending October 2, 1978, or during any year which commences at five year intervals thereafter, those being the years of periodic review of the Treaty, as provided in Article XIV of the Treaty. This right may be exercised only once.

2. Accordingly, in the event of such notice, the United States would have the right to dismantle or destroy the ABM system and its components in the deployment area of ICBM silo launchers and to deploy an ABM system or its components in an area centered on its capital, as permitted by Article III(a) of the Treaty, and the Soviet Union would have the right to dismantle or destroy the ABM system and its components in the area

centered on its capital and to deploy an ABM system or its components in an area containing ICBM silo launchers, as permitted by Article III(b) of the Treaty.

3. Dismantling or destruction and deployment of ABM systems or their components and the notification thereof shall be carried out in accordance with Article VIII of the ABM Treaty and procedures agreed to in the Standing Consultative Commission.

Article III

The rights and obligations established by the Treaty remain in force and shall be complied with by the Parties except to the extent modified by this Protocol. In particular, the deployment of an ABM system or its components within the area selected shall remain limited by the levels and other requirements established by the Treaty.

Article IV

This Protocol shall be subject to ratification in accordance with the constitutional procedures of each Party. It shall enter into force on the day of the exchange of instruments of ratification and shall thereafter be considered an integral part of the Treaty.

DONE at Moscow on July 3, 1974, in duplicate, in the English and Russian languages, both texts being equally authentic.

FOR THE UNITED STATES OF AMERICA:
RICHARD NIXON
President of the United States of America

FOR THE UNION OF SOVIET SOCIALIST REPUBLICS:
L.I. BREZHNEV
General Secretary of the Central Committee of the CPSU